

M/S Sachdeva Enterprises vs M/S Temptech Aircon Pvt. Ltd And Ors on 18 November, 2025

IN THE COURT SH. ROHIT KUMAR
JUDICIAL MAGISTRATE FIRST CLASS- 04
NORTH DISTRICT : ROHINI COURTS : NEW DELHI

JUDGMENT

Complaint Case	11635/2016
Title	M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt. Ltd.
Name of Complainant	M/s. Sachdeva Enterprises Prop. Sh. Shyamlal Sachdeva Through his power of Attorney Sh. Inderjeet Singh Working At AW-5, Sanjay Gandhi Transport Nagar, Delhi.

Name of Accused 1. M/s. Temptech Aircon Pvt ltd.

Through its Directors

2. Sh. Ashutosh Goswami Director M/s. Temptech Aircon Pvt Ltd.

3. Sh. Pankaj Sardana Director M/s. Temptech Aircon Pvt Ltd All at : P-30, Block-P, Aruna Nagar Delhi.

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Date of Institution of Complaint	08.09.2016
Date of Pronouncement	18.11.2025
Offence complained of	Under Section 138/141 NI Act
Offence charged with	Under Section 138/141 NI Act
Plea of accused	Pleaded not guilty
Final Order	Convicted.

In furtherance of the mandate of Sec. 355 of the Criminal Procedure Code, 1973. The judgment in the afore titled case is delivered below:-

Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd.
1/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR 17:08:09 +0530 Date:
2025.11.18

1. Complainant's Case:

1.1 It is averred in the complaint that the Complainant Firm is Shyamlal Sachdeva and is having its Office at, AW-5, Sanjay Gandhi Transport Nagar, Delhi-110042.

1.2 It is further averred that the present Complaint is being filed by the Proprietor of Complainant firm Sh. Shyam Lal Sachdeva through his Son and Special Power of Attorney Sh. Inderjeet Sachdeva who is well conversant with the facts of the case and is competent to depose.

Sh Inderjeet Sachdeva who is son of Proprietor of Complainant firm and is part-and-parcel of the Complainant firm and is handling all the day-to-day affairs of complainant firm as Sh. Shyam Lal Sachdeva is having knee problem from last more than 5 years and all the affairs of Complainant firm are handled by Sh. Inderjeet Sachdeva solely. Present transaction with Accused company is solely in knowledge of Inderjeet Sachdeva. Further averred that the Proprietor of Complainant Firm has authorized Sh. Inderjeet Sachdeva vide Special Power of Attorney dated 05.09.16 to initiate legal proceedings, both civil & criminal against the Accused Company and its Directors and to do all such acts, deeds and things as may be required to be done in this connection on behalf of the Complainant firm.

1.3 It is further averred that the Complainant firm is into the trade and supply of raw materials and products used in truck body building and other related things from last more than 20 years and hence have built up goodwill and respect in the market and are presently working at the above-mention address.

1.4 It is further averred that the Accused Company through its directors is in the field of making refrigerated containers and other Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 2/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR 17:08:14 +0530 Date: 2025.11.18 related products and their company is in name-and-style of M/s. TEMPTECH AIRCON PVT LTD in the of business Accused Company came to know about Complainant's good quality inducts Accused approached Com for supplying Iron Sheets and shapes and sections and after lot of convincing Complainant became ready to provide accused with his required goods. Further averred that although Complainant believed in cash payment and but Accused convinced him that his cheques are as good as cash and his cheques will be honored by his bankers at every cost due to the lest of cash balance Accused persons maintain in company's Account.

1.5 It is further averred that accused placed an order on 05.07.16 of Iron Sheets and shapes and sections with an advance cheque of Rs.2,00,000/- bearing cheque No. 197144 and requested Complainant to release the goods as they were urgently required to complete the projects in hand and Complainant should not worry about the payments. Further averred that two tax-paid Bills/Invoices DATED 06.07.16 & 07.07.16 were raised from book. No.9 in due course bearing No. 435 (of Rs.3,52,145/-) & Bill No. 436 (of Rs 2.74.415) respectively and goods were sent to Accused through their own transport from the office of complainant. Further averred that another cheque of Rs 2,00,000/- was sent on 06.07.16 by Accused through their transporter bearing cheque No.

197145 to the complainant. Further averred that on 07.07.16 Sh. Pankaj Sardana (Accused No.3) called up Inderjeet (complainant herein) to know the exact amount of balance after deducting Rs.4,00,000/- already received. Further averred that he assured, that the cheques will be honored as he has checked the quality of goods supplied by the Complainant on 06.07.16 and the goods are up-to mark as needed. Further averred that on knowing the balance amount as per 2 invoices raised a cheque bearing No. 197146 of Rs. 2,26,560/- dated 08.07.16 was sent by Accused Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 3/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR 17:08:19 +0530 Date: 2025.11.18 No.3 (all cheques drawn on ICICI Bank, University Branch, Delhi) along with their transporter and goods as per invoice No. 436 were taken by transporter after due counting of pieces as per invoice and were sent to Accused Company. Further averred that till that time there was no apprehension of being cheated by the Accused persons as they were themselves seeking details of balance amount and were eager to issue cheques.

1.6 It is further averred that goods ordered by Accused were sent in two lots/parts and bill No.435 dated 06.07.16 (iron sheets) and bill No. 436 dated 07.07.16 (shapes & sections) amounting to Rs.6,26,560/- in total.

1.7 It is further averred that that after the dispatch of goods on 07.07.16 Complaint was happy to have a good business dealing with Accused company but all his happiness ended on 08.07.16 when he went to his bank to deposit the 3rd cheque of Accused Company. Further averred that complainant was shocked to know that both the previous cheques issued by Accused No.2 on Behalf of Accused No.1 deposited in bank got dishonored on presentation with remarks "FUNDS INSUFFICIENT". Further averred that complainant called up accused no.2 who said that there must be some mistake and he will check from his bankers and sought 2-3 days time. Further averred that the balance cheque also met with the same fate and Complainant got return memo dated 12.07.16 from his bankers.

1.8 It is further averred that on receipt of 3 dishonored memo, complainant went to accused No.1's office to mark his protest. Further averred that on visiting Accused No.2, Complainant and informed that due to some over-draft in cheques were returned and the things will be normal in 10 days time as they have sent a mail to Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 4/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR 17:08:24 +0530 Date: 2025.11.18 Regional Manager of ICICI Bank and Accused persons have been assured that their over draft facility will be active in 10 days again. Further averred that on 22.07.16 complainant called up the Accused No 2 who confirmed the deposit after 25.07.16 until complainant gets 1.9 It is further averred that on this assurance and on receiving complainant presented in 3 cheques again all the cheques dishonored on presentation with remarks "FUNDS INSUFFICIENT and call so hold the cheques the same was intimated to complainant via joint return Memo dated 27.07.16.

1.10 It is further averred that in discharge of its liability, the Accused Company issued Three cheques. Further averred that the said 3 cheques dated 05.07.16, 06.07.16, and 08.07.16 bearing cheque No. 197144, 197145 & 197140 issued by Accused Company from its account maintained with ICICI Bank, University Branch, Delhi- 110007 to the complainant towards the payment of the above- mentioned Two Bills. Sh. Ashutosh Goswami is the signee of the cheque as he is one of the

authorized signatory.

1.11. It is further averred that that, at the time of issuance of the said cheques it was assured and represented to the Complainant, by the Accused No. 2 & 3, that the said cheques are as good as cash and the same shall be honored by their bankers as and when the same is presented by complainant for encashment on their respective dates. Further averred that the accused No.3 also assured and represented that they shall personally take care and shall make it sure that sufficient funds, in account, are available to honour the above referred cheques as he is handling day-to-day affairs of Accused No. 1.

Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd.

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1.12. It is further averred that it is submitted that but for the above said representation and assurances of the Accused persons the Complainant was not ready to accept the cheques offered by accused persons as payment of his bills and Complainant would not have parted with his goods if he had a little apprehension that complainant will be cheated in this way.

1.13. It is further averred that believing the above words and assurances, to be true, complainant accepted the above-referred post- dated cheques in discharge of valid liability/valuable consideration/legal dues from the Comp much Directors towards the payment of its 2 outstanding bills.

1.14 It is further averred that accused persons issued 3 cheques in discharge of his liability from bank account maintained by him as per his convenience and adjustment after the delivery of ordered goods. Further averred that accused no.1 being a company and accused No. 2 is director as well as authorised signatory under whose signature cheques were received and Accused the 3 was in active dealing who assured telephonically that the cheques are bound to pass due to high balance they maintain in the account of Accused No.1 1.15. It is further averred that as per the commitment, confirmation and assurance of the Accused persons cheques were presented by the Complainant on the respective dates mentioned on the cheques. Further averred that it was a state of dismay and astonishment for the Complainant that not even honored on presentment by the Accused banker and the two cheques bounced twice and came back with remarks "FUNDS INSUFFICIENT AR the four return memos dated 06.07.16, 07.07. 16, 12.07.17 and 27.07.16 single cheque ant (all 3 cheques) came with the remarks "FUNDS INSUFFICIENT Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 6/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR Date: 2025.11.18 17:08:35 +0530 1.16. It is further averred that accused persons leaving all business ethics

and personal relations behind have done such betrayed the trust which Complainant reposed upon them. Further averred that it is unethical and unprofessional act and pertinent to mention herein that in a sequence the 3 cheques issued by Accused got dishonored on the respective dates which was twice assured and confirmed by Accused persons bringing Complainant in state of shock, dismay & dilemma as his financial circulation crumbled.

1.17. That the bouncing of the above-said cheques in the above-said manner, makes it crystal clear that Accused approached Complainant with malafide intention and ulterior motive from the inception of business relation. Further averred that accused persons fraudulently represented and assured Complainant that the cheques being issued by them shall be honored by their banker at the specified dates of presentation for clearance. Further averred that accused persons even at the time of taking the goods and issuance of the above-said Cheques towards the payment were of the knowledge that the cheques issued by them in the name of Complainant shall not be honored by banker for want of sufficient balance in their bank account.

1.18 It is further averred that Complainant known that the cheques issued by Accused persons shall not be honored on presentation, Complainant would have never parted with the goods. Further averred that the Accused persons are wrongfully withholding the legitimate amount dues of Complainant. Further averred that by doing so, accused persons have caused wrongful gain to themselves and wrongful loss to Complainant by wrongfully with-holding legitimate dues of Complainant.

Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 7/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR Date: 2025.11.18 17:08:40 +0530 1.19 It is further averred that in the above constrained circumstances, the complainant sent legal notice dated 07.08.16 the accused persons through his counsel Munish Vohra and Co. Further averred that the above referred legal notices were sent to Accused, by way of Speed Post and Registered A.D on 08.08 2016 the place of work for gain Leon registered address Accused has been served with the said legal notices on their offer address on 09.08.16 vis speed-post and by Regd. A.D. Further averred that track Report of Both Speed-Post and Regd. A.D. is annexed along with the Complaint. However, despite the service of said legal notice the 'Accused persons failed to reply as well as comply with the contents of the notice within the statutory period and failed to pay the outstanding amount and then by committing an offence U/S 138 N. 1. Act. So the complainant is constrained to file the present Complaint before this Hon'ble High Court.

2. Accused's Defence:

2.1 The accused persons entered defence and were duly notified, (as per the mandate of S. 251 of the Criminal Procedure Code, 1973), of the offence alleged against them. They pleaded not guilty and claimed to be tried.

2.2 In his defence recorded in notice u/s 251 Cr.P.C., accused persons stated that they did not take goods from the complainant as stated in the complaint and cheque in questions were given as security nor for any liability. Further stated that the cheques

were issued as security as there was a regular business transaction with the complainant and he used to make regular payments for the goods received from the complainant. Further averred that the complainant is having certain understanding with some of his staff members. Further averred that problems started when he removed the said staff. Cheques in question bears his signature. Further stated that he does not Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 8/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR 17:08:46 +0530 Date: 2025.11.18 remember if he has received the legal notice of demand. Further stated that the company and he has no liability towards the complainant.

In addition to this, vide statement u/s. 313 CrPC, accused stated that he had not dealt with the complainant concern. Further stated that the other Director along-with employees had played a fraud upon our company in connivance with the complainant concern. Further stated that the cheque in question were only security cheques are (signed and amount written) which have been misused by the complainant concern without their permission. Further stated that no goods were ever received by their company. Further stated that he or his company have never received (put stamp or signatures on the alleged invoices). Further stated that he had never received any legal notice sent by the complainant concern. Further stated that he does not not know about the person who alleges to be AR of the complainant.

3. Applicable Legal Provisions:

3.1 The ingredients which need to be satisfied for establishing culpability under s. 138 of Negotiable Instrument Act r/w U/s 141 of NI Act has been expounded by the Hon'ble Apex court in the case of Kusum Ingots & Alloys Ltd. vs. Pennar Peterson Securities Ltd. And Others (2000) 2 SCC 745; the same is reproduced below:

" (i) a person must have drawn a cheque on an account maintained by him in a bank for payment of a certain amount of money to another person from out of that account for the discharge of any debt or other liability;

(ii) that cheque has been presented to the bank within a period of six months from the date on which it is drawn of within the period of its validity whichever is earlier;

(iii) that cheque is returned by the bank unpaid, either because of the amount of money standing to the credit of the account is insufficient to honour the cheque or that it exceeds the amount arranged to be paid from that account by an agreement made with the bank;

(iv) the payee or the holder in due course of the cheque makes a demand for the payment of the said amount of money by giving a notice in writing, to the drawer of the cheque, within 15 days of Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 9/15 ROHIT by ROHIT KUMAR KUMAR Date: 2025.11.18 17:08:51 +0530 the receipt of information by him from the bank regarding the return

of the cheque as unpaid;

(v) the drawer of such cheque fails to make payment of the said amount of money to the payee or the holder in due course of the cheque within 15 days of the receipt of the said notice;"

3.2 In this matter accused person has admitted his signatures on cheque in question. Therefore, as per the settled law, presumption u/s 139 r/w 118 of NI Act is against all accused persons and in favour of the complainant. Now, accused person has to rebut the presumption in aforesaid provision.

S.139 of the NI Act stands as an exception to the general rule as to the burden of proof and shifts the onus on the accused. The expression "unless the contrary is proved" endows the accused with the opportunity to rebut the presumption. It encapsulates the principle of "reverse onus" and thus the determination of successful rebuttal would be on the touchstone of proportionality. The same has been settled in the authoritative pronouncement by a three judge bench of the Hon'ble Supreme Court in the case of Rangappa Vs. S.Mohan (2010) 11 SCC 441. The relevant extract is reproduced:

"28...In the absence of compelling justifications, reverse onus clauses usually impose an evidentiary burden and not a persuasive burden. Keeping this in view, it is a settled position that when an accused has to rebut the presumption under Section 139, the standard of proof for doing so is that of 'preponderance of probabilities'. Therefore, if the accused is able to raise a probable defence which creates doubts about the existence of a legally enforceable debt or liability, the prosecution can fail. As clarified in the citations, the accused can rely on the materials submitted by the complainant in order to raise such a defence and it is conceivable that in some cases the accused may not need to adduce evidence of his/her own..."

4. Thus, in accordance with the above authoritative mandate, the Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 10/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR Date: 2025.11.18 17:08:58 +0530 accused has to either show that consideration and debt did not exist or that under the particular circumstances of the case the non-existence of consideration and debt is so probable that a prudent man ought to suppose that no consideration and debt existed. The accused can do so by either bringing positive evidence on record or by using the existing material on record.

5. Before giving any finding in this matter, it is pertinent to mention that in this matter, cognizance was taken against the accused company, accused Ashutosh Goswami and Pankaj Sardana. However, during the trial accused Pankaj Sardana was declared absconder vide order dt. 13.11.2018 and perusal of records reflecting that said accused has not been arrested till date and trial has been faced by the accused company and accused Ashutosh Goswami.

6. Brief facts of the case are that the complainant is a firm and deals in the trade and supply of raw material and products used in truck body building and other related things. That accused company

through its Director is in the field of making refrigerated containers and other related products. Accused had approached the complainant for supplying the iron sheets and shapes and sections and after a lot of convincing, complainant became ready to provide required goods to the accused. That on 05.07.2016 an order was placed for iron sheets, shapes and sections with an advance cheque of Rs. 2,00,000/- bearing cheque no. 197144 and requested the complainant to release the goods as they were urgently required to complete the projects in hand and complainant should not worry about the payments. Two tax paid bills/invoices dated 06.07.2016 and 07.07.2016 were raised from book no. 9 in the due course bearing no. 435 and 436 of an amount of Rs. 3,52,145/- and Rs 2,74,415/- respectively and goods were sent to the accused through their own transport from the office of the Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 11/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR Date: 2025.11.18 17:09:07 +0530 complainant. That another cheque of Rs. 2,00,000/- bearing 197145 was sent on 06.07.2016 by the accused. On 07.07.2016, absconder accused Pankaj Sardana called up complainant to know the exact amount of balance after deducting Rs. 4,00,000 already received and he assured that cheques will be honored as he had checked the quality of goods supplied by the complainant on 06.07.2016. Thereafter, another cheque bearing no. 197146 of Rs. 2,26,510/- dated 08.07.2016 was sent by the accused no.3. It is alleged that as per the bill bearing no. 435 and 436 of dated 06.07.2016 and 07.07.2016 respectively, there was the liability of Rs. 6,26,560/-. Thereafter, said cheques got dishonored and present case was filed by the complainant.

Complainant has placed on record invoices bearing no. 435 and 436 exhibited CW-1/5 and CW-1/6 respectively to show the liability of Rs. 6,26,560/-. The said invoices were issued in the name of the accused company namely M/s Temptech Aircon Pvt Ltd.

In this matter, CW1 was examined before the Court and in the cross-examination, CW1/SPA holder namely Inderjeet Singh deposed that after the demise of his father, proprietorship of the firm was passed on to him and his brother. Further deposed that he has not placed on record any other documents authorizing him to represent this case on behalf of his mother and sister. Vol. deposed that he can bring the document showing the fact that his mother and sister have also given the authority to run the firm.

One of the defence of the accused person is that complainant has not been authorized to pursue in this matter. Therefore, case is entitled to be dismissed.

Perusal of record is reflecting that complainant has also placed on record ledger of account for the period from 01.04.2015 to 31.03.2016 Ex. CW-1/14 to show that till 12.07.2015, there was liability of the accused persons for an amount Rs. 6,26,560/-. Perusal of said ledger account is reflecting that same was duly signed and Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 12/15 ROHIT by ROHIT KUMAR KUMAR Date: 2025.11.18 17:09:27 +0530 stamped by the CA concerned. CW1 during his cross-examination deposed that Ex. CW-1/14 was prepared by his CA and denied the suggestion that same is a forged document.

Complainant has also placed on record the invoices bearing no. 435 and 436 exhibited as Ex. CW-1/5 and Ex. CW-1/6 respectively to show that there was liability of Rs. 6,26,560/- of the accused

persons towards the complainant.

Complainant has also placed on record one SPA Ex. CW-1/4 to show that he was authorized by his father Shyam Lal Sachdeva to pursue in this matter on behalf of the complainant proprietorship concern.

Perusal of the cross-examination of CW1/SPA holder of the complainant is reflecting that accused did not challenge the genuineness of invoices Ex CW-1/5 and CW-1/6 filed by the complainant. Perusal of said invoices is clearly reflecting that there was liability of Rs. 6,26,560/- of the accused persons towards the complainant. It is again pertinent to mention that during the cross-examination ledger account Ex. CW-1/14 was also not challenged. The said ledger account is clearly reflecting that till 12.07.2016, there was liability of Rs. 6,26,560/- of the accused company towards the complainant. The said ledger account is duly signed and stamped by the concerned person.

It is pertinent to mention that cheques in question were issued to the complainant for 08.07.2016, 06.07.2016 and 05.07.2016 and the signature on said cheques are duly admitted by the accused person namely Ashutosh Goswami. This admission of signature has raised the presumption against the accused person u/s 139 r/w 118 of NI Act.

It is pertinent to mention that complainant has also placed on record one surviving member certificate Ex. CW-1/21 to show that after demise of Mr. Shyam Lal Sachdeva, complainant/SPA holder was one of the surviving member in his family. Same has been Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 13/15 ROHIT by ROHIT KUMAR KUMAR 17:09:33 Date: 2025.11.18 +0530 perused. It is pertinent to mention that accused did not challenge this document and has given the mere suggestion that he has not been authorized to file this present case. Complainant has also placed on record on relinquishment deed dated Ex. CW-1/23 (OSR) to show that rights, interest and shares in the proprietorship concern of the complainant were relinquished in favour of SAP holder/Mr Inderjeet Sachdeva and his brother Rahesh Sachdeva. Perusal of the said relinquish deed is reflecting that all the rights were relinquished in the said proprietorship concern in favour of Mr. Inderjeet Sachdeva and his brother Rajesh Sachdeva by Ms. Aruna Rawal and Ms. Raj Kumari Sachdeva. It is pertinent to mention that again this document was not challenged and mere suggestion was given that complainant/SPA holder did not have any right to file this case.

It is pertinent to mention that accused did not lead any defence evidence in this case.

After considering all facts and circumstances of the case, Court is of the view that apart from ipse-dixit defence and suggestions taken/given by the accused persons, they did not take any plausible defence to counter the case of the complainant. Court is of the view that complainant has established his case beyond reasonable doubt through the above-mention invoices, ledger accounts and SPA filed by the complainant to show that accused persons had the liability for cheque in question and complainant was duly authorized for this case.

Court is of the view that despite the presumption u/s 139 r/w 118 NI Act, accused person did not rebut the same. Accordingly, Court is of the view that accused persons are entitled for the conviction u/s 138 r/w 141 NI Act. Accused persons did not bring any documents, evidence or witnesses to show that goods were not supplied to them by complainant and they were not having liability for the amount of cheques in question.

It is pertinent to mention that vide this judgment, conviction Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 14/15 ROHIT Digitally signed by ROHIT KUMAR KUMAR Date: 2025.11.18 17:09:39 +0530 has been done for the company i.e. M/s. Temptech Aircon Pvt Ltd. and accused Ahsutosh Goswami (Director/Signatory of M/s. Temptech Aircon Pvt Ltd.). No conviction has been done against the accused Pankaj Sardana as being the absconder as discussed above.

7. Conclusion:

7.1 Thus the unequivocal conclusion that comes forth is that the complainant has been successful in establishing of the culpability under s. 138 NI r/w 141 Act against the accused person. Accordingly, accused namely M/s. Temptech Aircon Pvt Ltd. and accused Ahsutosh Goswami (Director/Signatory of M/s. Temptech Aircon Pvt Ltd.) stands convicted of the offence culpability under s. 138 r/w 141 of the NI Act as failed to rebut the presumption u/s 139 r/w 118 Act.

Copy of judgment be given free of cost to accused persons.

Announced in open Court

on 18.11.2025

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Date: 2025.11.18
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(ROHIT KUMAR)

JMFC-04 (North) Rohini Courts
Delhi/18.11.2025/Court no. 14

Certified that this judgment contains 15 pages and each ROHIT Digitally signed by page bears my signature. KUMAR ROHIT KUMAR Date: 2025.11.18 17:09:50 +0530 (ROHIT KUMAR) JMFC-04 (North) Rohini Courts Delhi/18.11.2025/Court No.14 Ct Case no. 11635/16 M/s. Sachdeva Enterprises vs M/s. Temptech Aircon Pvt Ltd. 15/15